

- File No.: EXP202211572

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on 27/10/2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent has installed two cameras on the façade of a property owned by the respondent, which are not properly marked with informative signs indicating the video surveillance area that informs about the data controller and the address to which to direct requests for the exercise of rights, also noting that these cameras are clearly oriented towards the public road, without prior administrative authorization for this.

Images of the location of the cameras are provided.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the forwarding was reiterated on 18/11/2022 by certified postal mail, and was again returned marked "absent."

THIRD: On January 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 27, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent, for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified on 24/05/2023 in accordance with the rules established in Law 39/2015 of October 1 on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), through the Single Edict Board, as the postal notification at the interested party's address was unsuccessful, and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the respondent. Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken by the Spanish Agency for the Protection of Data in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: It is recorded, according to documentation in the file, that the respondent has installed two cameras on the façade of a property owned by the respondent, which, due to their orientation, are likely to be recording the public road and, consequently, any person passing by.

SECOND: It is recorded, according to documentation in the file, that despite there being a sign indicating that the area is under video surveillance, it does not meet the requirements set forth in Article 22 of the LOPDGDD, as it does not indicate who the data controller is, nor does it indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD establishes that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

"'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;"

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of safeguarding the security of persons and property, as well as their facilities.

The processing of personal data is subject to the principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the security of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed at the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

III

In the present case, from the documentation in the file, provided by the complainant, it is evident that the respondent has installed two cameras that, due to their orientation, are likely to be recording images of the public road.

It is considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, constituting an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

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a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for violations, the violation mentioned in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“In accordance with Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a statute of limitations of three years: those that constitute a substantial infringement of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)”

IV

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose

of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The obtained images may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a “layered information” system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

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The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the moment knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the “Guides and tools” section).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the “Guides and tools” section), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

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The installation of a video camera entails the unavoidable obligation to inform about its presence

through an informational device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR. In this case, although a sign is installed next to the cameras, it is observed that it does not meet all the requirements established by Article 22 of the LOPDGDD, as the information provided is incomplete and insufficient, since it does not specify who the controller of the processing is, nor does it indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

It is considered that the facts presented violate what is established in Article 13 of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: (...)

b) the rights of the data subjects under Articles 12 to 22; (...)".

For the purposes of the limitation period, Article 74 "Minor infringements" of the LOPDGDD states: "Minor infringements shall be considered and shall prescribe after one year, the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

(...)"

VI

Article 58.2 d) of the GDPR states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". In this case, the party being claimed against must proceed, within 30 days from the receipt of this resolution, to:

- The placement of the informational device in the monitored areas or to complete the information provided therein (at least, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided for in these provisions must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.

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- The removal of the camera or video camera system from the current location or its reorientation, so that the viewing of the images observed evidences that the public road is not captured.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

VII

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1,

- For an infringement of Article 5.1.c) of the GDPR, classified under Article 85 of the GDPR, a fine of 300 euros (THREE HUNDRED EUROS)

- For an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED EUROS)

SECOND: TO NOTIFY this resolution to B.B.B..

THIRD: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days from the receipt of this resolution, to demonstrate compliance with:

- The placement of the informational device in the monitored areas or to complete the information provided therein (at least, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided for in these provisions must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.
- The removal of the camera or video camera system from the current location or its reorientation, so that the viewing of the images observed evidences that the public road is not captured.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved C/ Jorge Juan, 6

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by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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